

Court No. - 4

Case :- WRIT - C No. - 6145 of 2022

Petitioner :- Sardar Mini Rice Mill Thru. Its Proprietor Manjeet Singh

Respondent :- State Of U.P. Thru. Prin. Secy. (Energy) And 2 Others

Counsel for Petitioner :- Alok Kumar Srivastava

Counsel for Respondent :- C.S.C., Amit Sharma

Hon'ble Attau Rahman Masoodi,J.

Hon'ble Om Prakash Shukla,J.

Heard learned counsel for the petitioner and learned Standing Counsel for the State. Sri Amit Sharma, learned counsel has put in appearance on behalf of the U.P. Power Corporation.

The application for enhancement of load, according to learned counsel for the Corporation, cannot be considered unless the arrears due to be paid in terms of Clause 4.43 sub-clause (e) of Electricity Supply Code, 2005. The arrears payable by the petitioner is the amount of assessment made against him for the theft of electricity.

The petitioner has already filed an appeal under Section 127 of U.P. Electricity Act, 2003 after making necessary compliance of the statutory deposit.

Learned counsel for the Corporation has informed that the appeal filed by the petitioner was dismissed in default on 28.2.2022 whereafter an application for recall of the same was filed on 28.3.2022.

The statute provides that once an appeal by making necessary compliance of the statutory deposit is filed, the authorities may not proceed to disconnect the supply of electricity. The issue as regards the civil liability on account of theft of electricity is pending but dismissal of the appeal in default would entitle the Corporation to recover the amount finally assessed unless the appeal is restored.

At this stage, learned counsel for the Corporation has submitted that in case the petitioner deposits the balance of the amount finally assessed against him by means of order dated 25.1.2021 within two weeks, subject to the outcome of appeal, the Corporation shall proceed to decide the pending application for enhancement of load without any further delay and the supply of electricity shall accordingly be regulated on payment of regular bills by the petitioner in accordance with law.

Learned counsel for the petitioner has conceded to the deposit

of the residual amount assessed against him within two weeks, whereafter the Corporation shall enhance the load as prayed and regulate the electricity on payment of regular bills issued from time to time. The amount so paid shall abide by the outcome of the pending appeal.

In view of the consensus arrived at between the parties, no further orders are required and the writ petition is disposed of accordingly.

Order Date :- 9.9.2022

Fahim/-